

Tentative Rulings for August 12, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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1.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO TAX COSTS

Tentative Ruling: No Tentative Ruling.

2.

CASE #	CASE NAME	HEARING NAME
CIV208568	CITY OF BARSTOW vs CITY OF ADELANTO	MOTION FOR APPROVAL OF (1) PRODUCTION SAFE YIELD CLASSIFICATIONS, AND (2) FREE PRODUCTION ALLOWANCE RECOMMENDATIONS FOR WATER YEAR 2026-2027

Tentative Ruling:

This matter is to be called by the Honorable Judge Craig Riemer in Dept. 1 at 10:00 a.m.

The Watermaster's motion is granted in part and denied in part. Specifically, the Court adopts the Watermaster's recommendations to reduce the FPA for producers in Este from 45% of BAP to 40% of BAP and to maintain the FPA of Baja at 19.5%. As to the other three subareas, the Court declines to adopt the Watermaster's recommendations. The FPAs for those subareas shall remain the same for the coming water year: Alto at 50.4%, Oeste at 45%, and Centro at 56%.

Analysis

Documents Considered

For the reasons stated below, the Court has neither read nor considered the following documents:

- The Court declines to consider the Victorville Water District's reply to the oppositions of Newberry Springs Recreational Lakes Association and California Department of Fish and Wildlife for two reasons. First, the briefing of this motion is controlled by the Order on Stipulation re Briefing Schedule, filed 5-12-26. That order specifically authorizes the filing of a reply by the Watermaster and sets a deadline for doing so. (P. 2, l. 8.) It does not authorize the filing of a reply by any other party at any other time. Second, even if the order had been silent on who would be filing a reply, Victorville Water District would not be entitled to file a reply. A reply is a closing memorandum by a moving party. The only moving

party in this instance is the Watermaster. The Victorville Water District did not join in the Watermaster's motion and did not file a motion of its own. Because the district is not a moving party, it is not entitled to file a reply.

- The declaration of Leffler in support of the Victorville Water District's unauthorized reply is not considered for the same reasons. If a reply is unauthorized, then a declaration in support of that reply is unauthorized. Besides, "[n]ew evidence is generally not permitted with reply papers." (Valentine v. Plum Healthcare Group, LLC (2019) 37 Cal.App.5th 1076, 1089.) New evidence should be considered only under exceptional circumstances and only after giving the opposing party an opportunity to respond. (Plenger v. Alza Corp. (1992) 11 Cal.App.4th 349, 362, fn. 8.) The circumstances here are not exceptional and there is no time for either Newberry Springs or the DF&W to meet that new evidence prior to the stipulated hearing date.
- The Court does not consider the declaration of Wagner submitted with the Watermaster's reply. As noted above, new evidence submitted with a reply should be considered only under exceptional circumstances and only after giving the opposing party an opportunity to respond. (Plenger v. Alza Corp., supra, 11 Cal.App.4th at p. 362, fn. 8.) Those criteria are not met here.

Evidentiary Objections

The evidentiary objections are overruled. Objections 1, 6, 7, and 8 are overruled because they are not directed to a declaration or other evidence. The remaining objections are overruled because they are not material to the Court's analysis.

Reliability of PSY Calculations

The Watermaster's recommendations regarding changes to FPA are based upon the revised PSY figures estimated by the Watermaster. A variety of factors lead the Court to question the reliability of those estimates.

First, the estimated PSYs are calculated on the basis of a hydrologic base period of 1931-1990. In the Court's order filed April 21, 2026, it denied two motions to adopt different hydrologic base periods, one by the Watermaster and another by Mitsubishi Cement Corporation, Robertson's Ready Mix, Ltd., and Calportland Company. It was undisputed that the 1931-1990 base period is no longer representative of current conditions in the basin. The Court nevertheless denied those motions because neither motion considered all alternatives and thus neither proved that the new base period proposed was the best alternative available.

As a result, the current FPA motion is based upon the original base period. The Watermaster opines that the 1931-1990 base period is six percent wetter than the conditions that have existed since 2000. Without having selected a new, representative base period, the exact degree to which those estimates overstate the actual PSY is not known. In short, the accuracy of the PSY estimates is uncertain.

Second, it is unclear when a new, representative base period will be selected, and thus when that uncertainty regarding the accuracy of the PSY estimates will be reduced. In the order denying the motions to set a new base period, the Court noted: "The Watermaster discounted the representation of at least one alternative because the Mojave Water Agency's UMBM is not yet complete or not yet calibrated. To avoid such issues in the future, the parties may wish to refrain from any further motions to change the base period until after that model is both complete and calibrated."

At the time, the Court expected the model to be completed in the near future. In the motion heard on August 4, 2025, Mr. Wagner stated that the MWA was in the process of "finalizing" the model. (2025 Mtn., p. 73.) The reply to the 2025 motion expressed the Watermaster's "hopes" that the model would be completed, peer reviewed, and published by the time the Watermaster filed its annual report in 2026, although Mr. Wagner cautioned at the August 4, 2025, hearing that another 18-30 months might pass before the new model is completed, calibrated, and peer reviewed.

By contrast, in the current motion, the Watermaster offers no prediction whatsoever, saying only that the "completion date is unknown." (Mtn., p. 10, l. 12.) If the MWA cannot estimate when its model will be completed, and if the parties continue to defer further motions to determine the most representative base period until the model is complete, then accurate estimates of PSY may not be available for years.

Those two sources of uncertainty are compounded by the reliance for the first time on the Stamos study from 2001. The application of that study makes it unclear whether changes in PSY result from changes in facts or merely changes in analytical assumptions.

For all of these reasons, the Court is not inclined to rely upon the new PSY estimates to justify increases in FPA, as the Watermaster has recommended for Alto and Oeste. As the Court has advised the parties in the past, it believes that the goals of the Physical Solution are best achieved by being aggressive in reducing FPA but slow to raise it. That caution is particularly appropriate this year in light of the uncertainty over the actual PSYs on which the FPA recommendations are based. (Even if the Court were to increase those FPAs, it would be unlikely to approve increases of the magnitude recommended – 6.9% for Oeste and 4.1% for Alto – in a single year.)

Baja

The Watermaster recommended leaving the FPA for Baja unchanged at 19.5% because of the potential adverse impact of additional free production on the resources at Camp Cady. The Court adopts the Watermaster's recommendation, but primarily because of the uncertainty described above regarding the degree to which the PSYs have been overstated. To the extent that refraining from increasing free production might avoid further damage to the resources at Camp Cady, that reinforces the Court's decision. Even if the Court were to increase Baja's FPA, as urged by Newberry Springs, it would be unlikely to increase it in a single year by the full 5% requested.

Centro

Rather than keep Centro at 56%, the Watermaster recommends a slight decrease to 55.8%. The Court is not inclined to make such minute changes at this time, especially given the uncertainty regarding the accuracy of the PSY.

Este

1. In discussing the PSY of Este, Mr. Wagner states both that the water budget shows a deficit and that the change in storage over the last 30 years is near zero. (Mtn., pp. 40-41.)
 - a. Can both of those apparently contradictory statements be true? If so, how?
 - b. If both cannot be true, why does the Watermaster rely on the historical water levels rather than the water budget?
2. In calculating the PSY of Este, Mr. Wagner states: "Total production in Este Subarea has been in continuous decline since about 1996. In Water Year 2024-25, total pumping was 4,334 acre-feet. The average pumping during the period of record during which water levels have remained relatively constant (1996-2025) is 6,677 AFY. As noted, PSY can be defined as total pumping plus change in storage: $PSY = \text{Pumping} + \text{Change in Storage}$. Because water levels have remained relatively stable for several years, it is reasonable to conclude the change in storage is near zero. Therefore, Watermaster recommends Este PSY of 6,677 acre-feet (total pumping plus change in storage)." (Mtn., p. 41.) The amount of that decrease has been dramatic: from a high of over 10,000 acre-feet in 1995-1996 to 4,334 acre-feet in 2024-2025, a decrease of over 56%. (Mtn., p. 63.)
 - a. If the production in Este has been steadily declining to such a degree over the last 30 years, would it be reasonable to expect the water level – the amount of storage – to increase to a similar degree, or at least to a significant degree?
 - b. Since the storage has not increased despite the dramatic decrease in production, doesn't that suggest that PSY for Este is closer to the current level of production (4,334 acre-feet) rather than the 30-year average (6,677 acre-feet)?
 - c. What is the average production for the period of 2015-2016 through 2024-2025?
3. Because of these questions, the Court suspects that the true PSY for Este is less than 6,677 acre-feet. However, because the current FPA far exceeds that figure, the Court adopts the Watermaster's recommendation to reduce the FPA for Este from 45% of BAP to 40% of BAP.

Other Questions and Concerns regarding this Motion in General

1. In Mr. Wagner's declaration, he states: "The conceptual model is predicated on the net 1931-1990 average annual water supply (adjusted for current cultural conditions) as applied to the 2024-25 cultural conditions." (Mtn., p. 38, ll. 1-3.)

- a. The references to both “current cultural conditions” and “2024-2025 cultural conditions” in the same sentence are unclear. Are you comparing the cultural conditions in 1931-1990 to the cultural conditions in 2024-2025?
2. In Mr. Wagner’s declaration, he states: “Consumptive use values by phreatophytes are being evaluated by the California Department of Fish and Wildlife.” (Mtn., p. 40.) The figures in Table 5-1 are from the USGS. (Mtn., p. 72, fn. 16.)
 - a. When was the DF&W’s evaluation completed or expected to be completed?
 - b. In the current motion, is the Watermaster relying upon the results of the DF&W’s evaluation? If so, where is the evidence of those results?
 - c. If the Watermaster is not relying upon the results of the DF&W’s evaluation for purposes of this motion, is the Watermaster relying solely upon evidence from the USGS? If so, where is that evidence?
3. Table 5-1 includes entries for consumptive uses. The source of those figures is identified as a “Consumptive Use Analysis by Watermaster for Water Year 2024-2025.” (Mtn., p. 72, fn. 14.)
 - a. Has the Court been presented with evidence of the results of that analysis? If so, where is that evidence?
 - b. If that evidence has not been presented to the Court, how does the absence of that evidence affect the Watermaster’s analysis of PSY?
4. As the Watermaster acknowledges (Mtn., p. 33), the Judgment defines Production Safe Yield as: “The highest average Annual Amount of water that can be produced from a Subarea: (1) over a sequence of years that is representative of long-term average annual natural water supply to the Subarea net of long-term average annual natural outflow from the Subarea, (2) under given patterns of Production, applied water, return flows and Consumptive Use, and (3) without resulting in a long-term net reduction of groundwater in storage in the Subarea.” Nevertheless, Mr. Wagner also states: “In summary, Table C-1 of the Judgment provides that $PSY = \text{Total Production} + \text{Surplus} / (\text{Deficit})$. Stated another way, $PSY = \text{Total Production} + \text{Change in Storage}$.” (Mtn., p. 30; accord, p. 41.)

In the Court’s view, the two summary definitions offered by Mr. Wagner are not fair restatements of the definition prescribed by the Judgment. Those alternative definitions fail to consider such factors as applied water, return flows, and consumptive use, each of which the Judgment requires to be considered. Nor does the Court agree that Table C-1 supports the assertion that PSY may be defined as simply Total Production + Change in Storage. Table C-1 requires the analysis of the various aspects of consumptive use and makes no mention of changes in the amount of storage.

In short, in evaluating the evidence offered regarding the PSY of a particular subarea, the Court expects an analysis consistent with the Judgment’s definition, not any simplified summary.

However, some of the terms used in that definition are not clear and are not themselves defined in the Judgment.

- a. What is meant by “applied water,” and where is that factor reflected in Table C-1?
- b. What is mean by “return flows,” and where is that factor reflected in Table C-1?

Questions and Concerns regarding Future Motions

1. As described in more detail above, when the Court suggested that any further motions to establish a new base period until after the regional model was complete, the evidence suggested that completion might occur relatively soon. Now, however, the Watermaster offers no prediction whatsoever, saying only that the “completion date is unknown.” (Mtn., p. 10, l. 12.) If the Mojave Water Agency cannot confidently estimate when it will complete the model, then it may not be reasonable to continue to defer further motions to adopt a more representative hydrologic base period.
 - a. Should the Court direct the Watermaster, and invite other interested parties, to bring motions for the adoption of a different base period to be filed and heard within the next six months, allowing such a motion to be decided well before the annual FPA adjustment motion is being prepared in 2027?